
JPMORGAN CHASE BANK, N.A. v. MELANIE RIVERA-HOLM
Case No. CL25-04905

Motion for Entry of Judgment

TENTATIVE RULING

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an “appearance” via a stipulation filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant’s contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court is not satisfied that the mailing address Plaintiff used for service of notice of motion provides notice and/or satisfies due process.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.

CHAVEZ v. RIGHT NOW AIR
Case No. CU24-02605

Motion to Compel Production of Unredacted Medical Records

TENTATIVE RULING

Parties to appear.

Defendant’s unopposed motion seeking compliance with the subpoena served on Winters HealthCare Behavioral Health is GRANTED IN PART. Winters Healthcare Behavioral Health is ordered to produce plaintiff’s records from January 2, 2019, (five years prior to the incident) to the present.

It appears that the parties agreed to use a “first look” process and that Winters Healthcare Behavioral Health has actually produced the documents subpoenaed to Plaintiff’s counsel as previously agreed. Defendant contends that Plaintiff’s counsel heavily redacted or omitted pages during this “first look” process such that the materials produced lacked substance and provided a privilege log identifying a right to privacy as